



Procedure No: EXP202313835 (PS/00574/2023)

Appeal No: RR/00319/2024

Examined the appeal filed by the entity ALL IN DIGITAL MARKETING, S.L., with CIF: B88369178 against the resolution issued by the Director of the Spanish Agency for Data Protection on 17/04/24, in procedure PS/00574/2023, for violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI) and based on the following:

FACTS

FIRST: On 17/04/24, the Director of the Spanish Agency for Data Protection issued a Resolution in procedure PS/00574/2023, opened against the entity ALL IN DIGITAL MARKETING, S.L., with CIF: B88369178 for the violation of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, with a fine of 5,000 euros (five thousand euros), for sending advertising emails to the complainant after she had requested not to receive them again.

SECOND: The following proven facts were recorded:

First: The file contains copies of the emails dated 06/07/23 and 21/07/23, sent by the respondent from the email address allzoners@allzone.es to the email address EMAIL.1 containing commercial or advertising messages: "(...) We want to thank you for your trust, for this we can think of no better gift than to offer you the chance to win this incredible gift. The pack includes (...)".

Second: The file contains copies of the confirmation messages indicating successful unsubscription: "You have been successfully unsubscribed" through the <> option available in the emails.

Third: The file contains a copy of the email dated 21/07/23, sent by the complainant from the email address A.A.A. EMAIL.1 to the email address allzoners@allzone.es requesting that no more advertising emails be sent to her: "I have unsubscribed from your newsletter distribution list twice because I do not want to continue receiving emails. In both cases, it has been useless because you have ignored it and continued sending me emails. I indicate through this means that I do not want to continue receiving your commercial communications (...)".

Fourth: The file contains copies of the emails dated 01/08/23, 08/08/23, 10/08/23, 15/08/23, 17/08/23, 24/08/23, 29/08/23, and 01/09/23, sent by the respondent from the email address allzoners@allzone.es to the email address EMAIL.1, containing commercial messages: "(...) This is a unique opportunity for those who wish to acquire their favorite products at affordable prices. We are here to help you with your order! (...)".

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THIRD: On 16/05/24, a written appeal for reconsideration was received by this Agency, submitted by the appellant, in which the following was stated:

1st That the client, A.A.A., registered on the website allzone.es on 25/03/2023, for the completion of their order reference (...) and on 25/03/2023, accepting all the general conditions of purchase, privacy policy, subscription to the newsletter, and offers from partners. (We attach-DOC1 a document showing the moment of registration in which the client accepts the privacy policy and gives their consent to communications regarding our newsletter and associated offers).

2nd That regarding the source of the personal data of the affected person and the manner of obtaining it, we can indicate that since it is an online purchase, the client provides all their data at the time of registration shown in DOC1 and gives their consent for the processing of this data. Furthermore, it is important to highlight at this point that as an online website, we can only provide digital documents as proof or justification of the processes carried out by the user.

3rd That, as a procedure enabled for the exercise of the right of opposition, we attach document DOC2 from our privacy policy page where it explains how a user should request the deletion, rectification, or opposition to the processing of their data and to which email they should direct this case: delegadodatos@allindigital.es. It is important to note that the user did not carry out this process at any

time; for this reason, we cannot attach a justificatory document for the deletion of data as no form was submitted with this request.

4th That the user has the possibility to access their client area and unsubscribe and subscribe to commercial communications, newsletter subscriptions, and associated offers as many times as they wish or deem appropriate, through the personal data section, by clicking the checkbox, and then the save button (We attach sample document DOC3). Each time the user performs this process, they are informed via email of their subscription status. As it is an online website, the only justification we can provide is the registration of the client file where it shows when our server sends such emails to the user with the communication. (We attach the complete client file DOC4).

5th That in this case, we suspect that the client requested the unsubscribe in the manner indicated in the attached annexes (which was not done correctly according to our data policy), but subsequently accessed their client area again and resubscribed to the commercial communications, and for this reason, advertising information was sent again. It is important to highlight that the email the user claims to have sent to allzoners@allzone.es on 21/07/2023 is a no-reply email that only sends commercial communications but in no case receives information.

6th That it was not until 13/09/2023 that the client contacted us via email at our contact email clientes@allzone.es and indicated their desire

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to unsubscribe from our newsletter and commercial communications, the email is replied to confirming to the client the process, and the cancellation is made definitively.

LEGAL GROUNDS

I

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

In relation to the statements made in the appeal, the following should be noted:

First: The appealing entity states, in points 1, 2, and 3 of its appeal, that the complainant registered on the website allzone.es on 25/03/23, to place an online order accepting all the general conditions of purchase, privacy policy, subscription to the newsletter, and offers from partners, and states that, as the procedure enabled for exercising the right of opposition, as indicated in the "Privacy Policy" of the website, an email must be sent to the address delegadodatos@allindigital.es and alleges that the complainant, at no time, carried out this process, so they cannot attach a supporting document as no form was submitted with this request.

In this regard, it should be recalled that, section 2 of Article 21 of the LSSI establishes that, "(...) the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them. When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include this address is prohibited."

In the case at hand, from the copies of the advertising emails received by the complainant and sent to this Agency, it is confirmed that none of them includes the email address delegadodatos@allindigital.es with the indication that this email address is the one indicated for exercising users' rights regarding personal data protection.

However, what does appear in the advertising emails sent to the complainant is the option to click on

the link that appears at the end of them: "You receive this email because you have subscribed to the All Zone list or because you provided your email address at some event held, and we believe that the C/ Jorge Juan, 6

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The information provided may be of interest to you <>", being the method used by the complainant to exercise their right to oppose receiving more emails of this type, even receiving confirmation from the respondent that the unsubscription had been completed correctly, as evidenced by the response received: "You have been unsubscribed successfully."

Second: In points "fourth" and "fifth" of their submission, the appealing entity alleges that the user also has the option to access their client area and unsubscribe and subscribe to commercial communications, newsletter subscriptions, and associated offers as many times as they wish, but that, since it is an online website, the only justification they can provide is the record of the client file where it shows when the server sends the emails to the user with the commercial communication. They confirm that the client requested the unsubscription in the manner indicated but that it was not the correct way according to the website's data policy; however, subsequently, they accessed their client area again and resubscribed to the commercial communications, and for this reason, advertising information was sent to them again.

The appellant indicates in their allegations that each time the user performs the process of clicking on the "check box", and then on "save", they are informed via email of their new status of being subscribed, but they do not substantiate or provide in "DOC 3" the informative email they claim to have sent to the complainant when they resubscribed. The DOC 3 referenced by the appellant is merely a screenshot of a registration form but blank, without any information, which cannot be taken into consideration as it does not provide the "log" or process in which the complainant, as stated, resubscribed to receive advertising emails.

Furthermore, they indicate that since it is an online website, "the only justification we can provide is the record of the client file where it shows when our server sends those emails to the user with the communication. (We attach the complete client file DOC 4)." Well, analyzing that file, it is not deduced at any moment, nor is it recorded that the complainant had given consent again to receive new advertising emails after their unsubscription in July.

Regarding the email address allzoners@allzone.es, where the complainant sent an email indicating that they did not wish to receive any more advertising emails, the appealing party alleges that this email address is a "no-reply" address, and therefore they could not process the unsubscription; however, as can be read verbatim in the headers of the advertising emails received by the complainant, it states: "Reply to: allzoners@allzone.es", with no other information in the emails indicating that this address was "no-reply" and could not be used to contact the entity, but rather the opposite.

Third: In point "sixth" of the appeal submission, the appellant acknowledges that it was not until 13/09/23, when the client contacted them via email at the address clientes@allzone.es, that the unsubscription was processed definitively, but it has been recorded that the complainant attempted, at least on two occasions, to unsubscribe through the mechanism available in the emails received.

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even obtaining an affirmative response confirming its achievement and on another occasion sending an email with their request to the email address

allzoners@allzone.es,

which was marked as

"Reply to:

allzoners@allzone.es” in the received emails.

III

Late Resolution

Due to operational reasons of the administrative body, therefore, not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the AEPD is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned Law.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the term will be adopted by the Administration without any binding connection to the meaning of the silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having reviewed the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity ALL IN DIGITAL MARKETING, S.L., with CIF: B88369178 against the resolution issued by the Director of the Spanish Agency for Data Protection on 17/04/24, in procedure PS/00574/2023.

SECOND: TO NOTIFY this resolution to ALL IN DIGITAL MARKETING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the

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Contentious-Administrative Jurisdiction, contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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